

**AGREEMENT FOR PROFESSIONAL SERVICES FOR THE COMMUNITY
RECREATION CENTER (CRC) FEASIBILITY STUDY SERVICES BY AND BETWEEN
CITY OF BEAUMONT AND COMMUNITY WORKS DESIGN GROUP, LLC dba RHA
COMMUNITY WORKS**

THIS AGREEMENT FOR PROFESSIONAL SERVICES BY INDEPENDENT CONTRACTOR ("Agreement") is made and effective as of _____, 2026 by and between the **CITY OF BEAUMONT**, a California municipal corporation ("City") whose address is 550 E. 6th Street, Beaumont, California 92223, and Community Works Design Group, LLC dba RHA Community Works, a California Limited Liability Corporation whose address is 6480 Indiana Ave, Suite 100, Riverside, CA 92506 ("Contractor"). City and Contractor are sometimes hereinafter individually referred to as "party" and hereinafter collectively referred to as the "parties."

RECITALS

This Agreement is entered into on the basis of the following facts, understandings and intentions of the parties to this Agreement:

A. City desires to engage Contractor to provide the following services: comprehensive Community Recreation Center (CRC) Feasibility Study and Business Plan; and

B. Contractor has made a proposal ("Proposal") to the City to provide such professional services, which Proposal is attached hereto as **Exhibit "A"** and incorporated herein by this reference; and

C. Contractor agrees to provide such services pursuant to, and in accordance with, the terms and conditions of this Agreement, and represents and warrants to City that Contractor possesses the necessary skills, licenses, certifications, qualifications, personnel and equipment to provide such services.

AGREEMENT

NOW, THEREFORE, in consideration of the foregoing Recitals and mutual covenants contained herein, City and Contractor agree as follows:

1. Term of Agreement. This Agreement is effective as of the date first above written and shall continue until terminated as provided for herein. Notwithstanding anything in this Agreement to the contrary, this Agreement shall automatically terminate after December 31, 2027 unless extended by the parties with the approval of the City Council of the City.

2. Services to be Performed. Contractor agrees to provide the services ("Services") as follows: prepare a comprehensive feasibility study and business plans for priority community recreation facilities identified in the Beaumont Parks Master Plan. in accordance with Exhibit "A". All Services shall be performed in the manner and according to the timeframe set forth in the Proposal. Contractor designates Doug Grove as Contractor's Representative responsible for overseeing the Services provided by Contractor ("Contractor's Representative"). City designates the City Manager, or his or her designee, to act as the Project Manager ("Project Manager") in connection with the delivery of Services under this Agreement. Contractor shall supply, at its sole expense, all equipment, tools, materials, and supplies necessary to perform Services. In the event that the Proposal contains terms that are in addition to or in conflict with this Agreement, other than the price for Services, such terms shall not be valid and shall be of no force or effect.

3. Associates and Subcontractors. Contractor may, at Contractor's sole cost and expense, employ such competent and qualified independent associates, subcontractors and consultants as Contractor deems necessary to perform the Services; provided, however, that Contractor shall not subcontract any of the Services without the prior written consent of City.

4. Compensation.

4.01 Contractor shall be paid at the rates set forth in the Proposal and shall not increase any rate without the prior written consent of the City. Notwithstanding anything in this Agreement to the contrary, total fees and charges paid by City to Contractor under this Agreement shall not exceed the amount of One Hundred Seventy-Six Thousand Nine Hundred Forty-Five Dollar and Zero Cents (\$176,945.00).

4.02 Contractor shall not be compensated for any Services rendered nor reimbursed for any expenses incurred in excess of those authorized unless approved in advance by the City, in writing.

4.03 Contractor shall submit to City, on or before the fifteenth (15th) of each month, itemized invoices for the Services rendered in the previous month. The City shall not be obligated to pay any invoice that is submitted more than sixty (60) days after the due date of such invoice. City shall have the right to review and audit all invoices prior to or after payment to Contractor. This review and audit may include, but not be limited to City's:

a. Determination that any hourly fee charged is consistent with this Agreement's approved hourly rate schedule;

b. Verification that the hours billed, when multiplied by the approved hourly rates, result in the correct total;

c. Determination that each item charged is the usual, customary, and reasonable charge for the particular item. If City determines an item charged is greater than usual, customary, or reasonable, or is duplicative, ambiguous, excessive, or inappropriate, City shall either return the bill to Contractor with a request for explanation or adjust the payment accordingly and give notice to Contractor of the adjustment.

4.04 If the work is satisfactorily completed, City shall pay such invoice within thirty (30) days of its receipt. Should City dispute any portion of any invoice, City shall pay the undisputed portion within the time stated above, and at the same time advise Contractor in writing of the disputed portion.

5. Obligations of Contractor.

5.01 Contractor agrees to perform all Services in accordance with the terms and conditions of this Agreement and the Proposal. In the event that the terms of the Proposal shall conflict with the terms of this Agreement or contain additional terms that purport to bind the City other than the Services to be rendered and the hourly rate for the Services, the terms of this Agreement shall govern and said additional or conflicting terms shall be of no force or effect.

5.02 Except as otherwise agreed by the parties, Contractor will supply all personnel, materials and equipment required to perform the Services. Contractor shall provide its own offices, telephones, vehicles and computers. Contractor will determine the method, details, and means of performing the Services under this Agreement.

5.03 Contractor shall keep City informed as to the progress of the Services by means of regular and frequent consultations. Additionally, when requested by City, Contractor shall prepare written status reports.

5.04 Contractor is responsible for paying, when due, all income and other taxes, fees, and withholding, including withholding state and federal taxes, social security, unemployment and worker's compensation, incurred as a result of the compensation paid under this Agreement. Contractor agrees to indemnify, defend, and hold harmless City for any claims, costs, losses, fees, penalties, interest, or damages suffered by City resulting from Contractor's failure to comply with this provision.

5.05 In the event Contractor is required to prepare plans, drawings, specifications and/or estimates, the same shall be furnished in conformance with local, state and federal laws, rules and regulations.

5.06 Contractor represents that it possesses all required licenses necessary or applicable to the performance of Services under this Agreement and the Proposal and shall obtain and keep in full force and effect all permits and approvals required to perform the Services herein. In the event City is required to obtain an approval or permit from another governmental entity, Contractor shall provide all necessary supporting documents to be filed with such entity.

5.07 Contractor shall be solely responsible for obtaining Employment Eligibility Verification information from Contractor's employees, in compliance with the Immigration Reform and Control Act of 1986, Pub. L. 99-603 (8 U.S.C. 1324a), and shall ensure that Contractor's employees are eligible to work in the United States.

5.08 In the event that Contractor employs, contracts with, or otherwise utilizes any CalPERS retirees in completing any of the Services performed hereunder, such instances shall be disclosed in advance to the City and shall be subject to the City's advance written approval.

5.09 Drug-free Workplace Certification. By signing this Agreement, the Contractor hereby certifies under penalty of perjury under the laws of the State of California that the Contractor will comply with the requirements of the Drug-Free Workplace Act of 1990 (Government Code, Section 8350 et seq.) and will provide a drug-free workplace.

5.10 Contractor shall comply with all applicable local, state and federal laws, rules, regulations, entitlements and/or permits applicable to, or governing the Services authorized hereunder including, but not limited to California Department of Industrial Relations (Cal/OSHA) regulations; and the U.S. Department of Transportation Omnibus Transportation Employee Testing Act, related to their scope of work and operations. In case of conflict, the most stringent shall apply.

5.11 Contractor shall keep itself informed concerning and shall render all Services hereunder in accordance with all ordinances, resolutions, statutes, rules, and regulations of the City and any federal, state or local governmental entity having jurisdiction in effect at the time service is rendered.

5.12 By executing this Agreement, Contractor warrants that Contractor (i) has thoroughly investigated and considered the scope of Services to be performed, (ii) has carefully considered how the Services should be performed, and (iii) fully understands the conditions, circumstances, difficulties and restrictions attending performance of the Services under this

Agreement. If the Services involve work upon any site, Contractor warrants that Contractor has or will investigate the site and is or will be fully acquainted with the conditions there existing, prior to commencement of Services hereunder. Should the Contractor discover any latent or unknown conditions, which will materially affect the performance of the Services hereunder, Contractor shall immediately inform the City of such facts and shall not proceed except at Contractor's sole risk until written instructions are received from the Project Manager.

Contractor warrants all Services under the Agreement to be of good quality and free from any defective or faulty material and workmanship. Contractor agrees that for a period of one year (or the period of time specified elsewhere in the Agreement or in any guarantee or warranty provided by any manufacturer or supplier of equipment or materials incorporated into the Services, whichever is later) after the date of final acceptance, Contractor shall within ten (10) days after being notified in writing by the City of any defect in the Services or non-conformance of the Services to the Agreement, commence and prosecute with due diligence all Services necessary to fulfill the terms of the warranty at Contractor's sole cost and expense. Contractor shall act sooner as requested by the City in response to an emergency. In addition, Contractor shall, at its sole cost and expense, repair and replace any portions of the Services (or work of other contractors) damaged by Contractor's defective Services or which becomes damaged in the course of repairing or replacing defective Services. For any Services so corrected, Contractor's obligation hereunder to correct defective Services shall be reinstated for an additional one-year period, commencing with the date of acceptance of such corrected Services. All costs associated with such corrective actions and testing, including the removal, replacement, and reinstitution of equipment and materials necessary to gain access, shall be the sole responsibility of Contractor.

In the event that Contractor fails to fulfil its obligations under this Section, or under any other warranty or guaranty under this Agreement, to the satisfaction of the City, the City shall have the right to correct and replace any defective or non-conforming Services and any work damaged by such services or the replacement or correction thereof at Contractor's sole expense. Contractor shall be obligated to fully reimburse the City for any expenses incurred hereunder upon demand.

Payment to Contractor for work performed pursuant to this Agreement shall not be deemed to waive any defects in work performed by Contractor.

5.13 Time is of the essence in the performance of this Agreement.

6. Insurance. Contractor hereby agrees to be solely responsible for the health and safety of its employees and agents in performing the Services under this Agreement and shall comply with all laws applicable to worker safety including but not limited to Cal-OSHA. Therefore, throughout the duration of this Agreement, Contractor hereby covenants and agrees to maintain insurance in conformance with the requirements set forth below. Attached hereto as

Exhibit "B" are copies of Certificates of Insurance and endorsements as required by Section 7.02. If existing coverage does not meet the requirements set forth herein, Contractor agrees to amend, supplement or endorse the existing coverage to do so. Contractor shall provide the following types and amounts of insurance:

6.01 Commercial general liability insurance in an amount of not less than \$2,000,000 per occurrence and \$4,000,000 in the aggregate; Contractor agrees to have its insurer endorse the general liability coverage required herein to include as additional insured's City, its officials, employees and agents. Contractor also agrees to require all contractors and subcontractors to provide the same coverage required under this Section 6.

6.02 Business Auto Coverage in an amount no less than \$1 million per accident. If Contractor or Contractor's employees will use personal autos in performance of the Services hereunder, Contractor shall provide evidence of personal auto liability coverage for each such person.

6.03 Workers' Compensation insurance for any of Contractor's employees that will be providing any Services hereunder. Contractor will have a state-approved policy form providing statutory benefits as required by California law. The provisions of any Workers' Compensation insurance will not limit the obligations of Contractor under this Agreement. Contractor expressly agrees not to use any statutory immunity defenses under such laws with respect to City, its employees, officials and agents. Sole proprietors with no employees, LLCs, or partnerships using the services of members or partners who do not carry Workers' Compensation insurance acknowledge that they are not subject to the Workers' Compensation Act of the State of California and agree to complete a signed workers compensation exemption form.

6.04 Optional Insurance Coverage. Choose and check one: Required X /Not Required ___; Errors and omissions insurance in a minimum amount of \$2 million per occurrence to cover any negligent acts or omissions committed by Contractor, its employees and/or agents in the performance of any Services for City.

6.05 Cyber Liability Insurance REQUIRED IF CHECKED HERE ONLY [N/A] (Technology Professional Liability – Errors and Omissions), with limits not less than \$2,000,000 per occurrence or claim, and \$2,000,000 aggregate or the full per occurrence limits of the policies available, whichever is greater. Coverage shall be sufficiently broad to respond to the duties and obligations as is undertaken by Contractor in this Agreement and shall include, but not be limited to, claims involving infringement of intellectual property, including but not limited to infringement of copyright, trademark, trade dress, invasion of privacy violations, information theft, damage to or destruction of electronic information, release of private information, alteration of electronic information, extortion and network security. The policy shall provide coverage for breach

response costs as well as regulatory fines and penalties as well as credit monitoring expenses with limits sufficient to respond to these obligations. Contractor will file with City, before beginning professional services, certificates of insurance (Acord Form 25 or equivalent) satisfactory to City evidencing.

6.06 If Claims Made Policies (applies only to professional liability and cyber liability policies):

i. The Retroactive Date must be shown and must be before the date of the contract or the beginning of contract work.

ii. Insurance must be maintained, and evidence of insurance must be provided for at least five (5) years after completion of the contract of work.

iii. If coverage is canceled or non-renewed and not replaced with another claims-made policy form with a Retroactive Date prior to the contract effective date, the Contractor must purchase "extended reporting" coverage for a minimum of five (5) years after completion of the contract work.

7. General Conditions pertaining to Insurance Coverage.

7.01 No liability insurance coverage provided shall prohibit Contractor from waiving the right of subrogation prior to a loss. Contractor waives all rights of subrogation against City regardless of the applicability of insurance proceeds and shall require all contractors and subcontractors to do the same.

7.02 Prior to beginning the Services under this Agreement, Contractor shall furnish City with certificates of insurance, endorsements, and upon request, complete copies of all policies, including complete copies of all endorsements. All copies of policies and endorsements shall show the signature of a person authorized by that insurer to bind coverage on its behalf.

7.03 All required policies shall be issued by a highly rated insurer with a minimum A.M. Best rating of "A:VII". The insurer(s) shall be admitted and licensed to do business in California. The certificates of insurance hereunder shall state that coverage shall not be suspended, voided, canceled by either party, or reduced in coverage or in limits, except after thirty (30) days' prior written notice has been given to CITY.

7.04 Self-insurance does not comply with these insurance specifications. Contractor acknowledges and agrees that that all insurance coverage required to be provided by

Contractor or any subcontractor, shall apply first and on a primary, non-contributing basis in relation to any other insurance, indemnity or self-insurance available to City.

7.05 All coverage types and limits required are subject to approval, modification and additional requirements by City, as the need arises. Contractor shall not make any reductions in scope of coverage (e.g. elimination of contractual liability or reduction of discovery period) that may affect City's protection without City's prior written consent.

7.06 Contractor agrees to provide immediate notice to City of any claim or loss against Contractor or arising out of the Services performed under this Agreement. City assumes no obligation or liability by such notice, but has the right (but not the duty) to monitor the handling of any such claim or claims if they are likely to involve City.

7.07 The coverage shall contain no special limitations on the scope of protection afforded to City, its directors, officers, employees, or authorized volunteers. If the Contractor maintains broader coverage and/or higher limits than the minimums shown above, the City requires and shall be entitled to the broader coverage and/or higher limits maintained by the Contractor. Any available insurance proceeds in excess of the specified minimum limits of insurance and coverage shall be available to the City.

8. Indemnification.

8.01 Contractor and City agree that City, its employees, agents and officials should, to the extent permitted by law, be fully protected from any loss, injury, damage, claim, lawsuit, cost, expense, attorneys' fees, litigation costs, defense costs, court costs or any other costs arising out of or in any way related to the performance of this Agreement by Contractor or any subcontractor or agent of either as set forth herein. Accordingly, the provisions of this indemnity are intended by the parties to be interpreted and construed to provide the fullest protection possible under the law to City. Contractor acknowledges that City would not enter into this Agreement in the absence of the commitment of Contractor to defend, indemnify, and protect City as set forth herein.

a. To the fullest extent permitted by law, Contractor shall defend, indemnify and hold harmless City, its employees, agents and officials, from and against any liability, claims, suits, actions, arbitration proceedings, administrative proceedings, regulatory proceedings, losses, injuries, expenses, damages or costs of any kind, whether actual, alleged or threatened, actual attorneys' fees incurred by City, court costs, interest, defense costs, including expert witness fees and any other costs or expenses of any kind whatsoever without restriction or limitation incurred in relation to, as a consequence of or arising out of, or in any way attributable actually, allegedly or impliedly, in whole or in part to the performance of this Agreement.

Contractor's obligation to defend, indemnify, and hold harmless shall include any and all claims, suits, and proceedings in which Contractor (and/or Contractor's agents and/or employees) is alleged to be an employee of City. All obligations under this provision are to be paid by Contractor as they are incurred by City.

b. Without affecting the rights of City under any provision of this Agreement or this Section, Contractor shall not be required to indemnify and hold harmless City as set forth above for liability attributable solely to the fault of City, provided such fault is determined by agreement between the parties or the findings of a court of competent jurisdiction.

8A Indemnification Design Professionals. In the event that Contractor is a design professional under California Civil Code Section 2782.8 this Section 8A shall apply instead of Section 8. To the fullest extent permitted by California law and in accordance with California Civil Code section 2782.8, Contractor shall defend, indemnify, and hold harmless the City, its officers, employees, trustees and members ("Indemnified Parties") from any and all actions, assessments, counts, citations, claims, costs, damages, demands, judgments, liabilities (legal, administrative or otherwise), losses, notices, expenses, fines, penalties, proceedings, responsibilities, violations, attorney's and consultants' fees and causes of action including, but not limited to those for, injury to property or persons, including personal injury and/or death ("Claim(s)"), to the extent that the Claim(s) arises out of, pertains to, or relates to the negligence, recklessness, or willful misconduct of Contractor, its directors, officials, officers, employees and consultants arising out of, connected with, or resulting from the performance of the Services, the Project, or this Agreement. This indemnity excludes liability caused by the negligence or willful misconduct of any of the Indemnified Parties. The cost to indemnify, hold harmless, and defend charged to Contractor shall not exceed Contractor's proportionate percentage of fault.

9. Additional Services, Changes and Deletions.

9.01. In the event Contractor performs additional or different services than those described herein without the prior written approval of the City Manager and/or City Council of City, Contractor shall not be compensated for such services. Contractor expressly waives any right to be compensated for services and materials not covered by the scope of this Agreement or authorized by the City in writing.

9.02 Contractor shall promptly advise the City Manager and Finance Director of City as soon as reasonably practicable upon gaining knowledge of a condition, event or accumulation of events which may affect the scope and/or cost of Services. All proposed changes, modifications, deletions and/or requests for additional services shall be reduced to writing for review and approval by the City and/or City Council.

10. Termination of Agreement.

10.01. Notwithstanding any other provision of this Agreement, City, at its sole option, may terminate this Agreement with or without cause, or for no cause, at any time by giving twenty (20) days' written notice to Contractor.

10.02 In the event of termination, the payment of monies due Contractor for undisputed Services performed prior to the effective date of such termination shall be paid within thirty (30) business days after receipt of an invoice as provided in this Agreement. Immediately upon termination, Contractor agrees to promptly provide and deliver to City all original documents, reports, studies, plans, specifications and the like which are in the possession or control of Contractor and pertain to City.

11. Status of Contractor.

11.01 Contractor shall perform the Services in Contractor's own way as an independent contractor, and in pursuit of Contractor's independent calling, and not as an employee of City. However, Contractor shall regularly confer with City's City Manager or Project Manager as provided for in this Agreement.

11.02 Contractor agrees that it is not entitled to the rights and benefits afforded to City's employees, including disability or unemployment insurance, Workers' Compensation, retirement, CalPERS, medical insurance, sick leave, or any other employment benefit. Contractor is responsible for providing, at its own expense, disability, unemployment, Workers' Compensation and other insurance, training, permits, and licenses for itself and its employees and subcontractors.

11.03 Contractor hereby specifically represents and warrants to City that it possesses the qualifications and skills necessary to perform the Services under this Agreement in a competent, professional manner, without the advice or direction of City and that the Services to be rendered pursuant to this Agreement shall be performed in accordance with the standards customarily applicable to an experienced and competent professional rendering the same or similar services in the same geographic area where the City is located. Further, Contractor represents and warrants that the individual signing this Agreement on behalf of Contractor has the full authority to bind Contractor to this Agreement.

12. Ownership of Documents; Audit.

12.01 All draft and final reports, plans, drawings, studies, maps, photographs, specifications, data, notes, manuals, warranties, and all other documents of any kind or nature prepared, developed, or obtained by Contractor in connection with the performance of Services

performed for the City shall become the sole property of City, and Contractor shall promptly deliver all such materials to City upon request. At the City's sole discretion, Contractor may be permitted to retain original documents, and furnish reproductions to City upon request, at no cost to City.

12.02 Subject to applicable federal and state laws, rules and regulations, City shall hold all intellectual property rights to any materials developed pursuant to this Agreement. Contractor shall not use such data or documents for purposes other than the performance of this Agreement, nor shall Contractor release, reproduce, distribute, publish, adapt for future use or any other purposes, or otherwise use, any data or other materials first produced in the performance of this Agreement, nor authorize others to do so, without the prior written consent of City.

12.03 Contractor shall retain and maintain, for a period not less than four years following termination of this Agreement, all-time records, accounting records and vouchers and all other records with respect to all matters concerning Services performed, compensation paid and expenses reimbursed. At any time during normal business hours and as often as City may deem necessary, Contractor shall make available to City's agents for examination all of such records and shall permit City's agents to audit, examine and reproduce such records.

13. Miscellaneous Provisions.

13.01 This Agreement, which includes all attached exhibits, supersedes any and all previous agreements, either oral or written, between the parties hereto with respect to the rendering of Services by Contractor for City and contains all of the covenants and agreements between the parties with respect to the rendering of such Services in any manner whatsoever. Any modification of this Agreement will be effective only if it is in writing signed by both parties.

13.02 Contractor shall not assign or otherwise transfer any rights or interest in this Agreement without the prior written consent of City. Unless specifically stated to the contrary in any written consent to an assignment, no assignment will release or discharge the assignor from any duty or responsibility under this Agreement.

13.03 Contractor shall timely file FPPC Form 700 Conflict of Interest Statements with City if required by California law and/or the City's conflict of interest policy.

13.04 If any legal action or proceeding, including an action for declaratory relief, is brought to enforce or interpret the provisions of this Agreement, the prevailing party will be entitled to reasonable attorneys' fees and costs, in addition to any other relief to which that party may be entitled.

13.05 This Agreement is made, entered into and shall be performed in the County of Riverside in the State of California and shall in all respects be interpreted, enforced and governed under the laws of the State of California. The parties agree that venue in any litigation between them shall be in Riverside County, California.

13.06 Contractor covenants that neither it nor any officer or principal of its firm has any interest, nor shall they acquire any interest, either directly or indirectly, which will conflict in any manner or degree with the performance of their Services hereunder. Contractor further covenants that in the performance of this Agreement, no person having such interest shall be employed by it as an officer, employee, agent, or subcontractor.

13.07 Contractor has read and is aware of the provisions of Section 1090 et seq. and Section 87100 et seq. of the Government Code relating to conflicts of interest of public officers and employees. Contractor agrees that they are unaware of any financial or economic interest of any public officer or employee of the City relating to this Agreement. It is further understood and agreed that if such a financial interest does exist at the inception of this Agreement, the City may immediately terminate this Agreement by giving notice thereof. Contractor shall comply with the requirements of Government Code section 87100 et seq. and section 1090 in the performance of and during the term of this Agreement.

13.08 Improper Consideration. Contractor shall not offer (either directly or through an intermediary) any improper consideration such as, but not limited to, cash, discounts, services, the provision of travel or entertainment, or any items of value to any officer, employee or agent of the City in an attempt to secure favorable treatment regarding this Agreement or any contract awarded by City. The City, by notice, may immediately terminate this Agreement if it determines that any improper consideration as described in the preceding sentence was offered to any officer, employee or agent of the City with respect to the proposal and award process of this Agreement or any City contract. This prohibition shall apply to any amendment, extension or evaluation process once this Agreement or any City contract has been awarded. Contractor shall immediately report any attempt by any City officer, employee or agent to solicit (either directly or through an intermediary) improper consideration from Contractor.

13.09 Severability. If any portion, section, sentence, provision or paragraph of this Agreement is declared invalid, illegal, or otherwise unenforceable by a court of competent jurisdiction, the entire balance of this Agreement not so affected shall remain in full force and effect.

13.10 Prevailing Wages. Contractor shall be responsible to comply with applicable prevailing wages laws. As a condition of payment, if applicable Contractor shall show proof of payment of wages under applicable state and federal laws and regulations relating to

prevailing wages in accordance with the "General Wage Determination Made By the Director of Industrial Relations Pursuant To California Labor Code, Part 7, Chapter 1, Article 2, Sections 1770, 1773 and 1773.1", for Riverside County and/or 40 U.S.C. Section 276a, et. seq. Such wage rates shall conform with those posted at City offices and the project site. In the event that the Contractor fails to pay the prevailing wages, the Contractor shall be solely liable for penalties and for the shortfall in wages and shall indemnify, defend and hold harmless City under Section 8.01 against any of the same. The following Labor Code sections are hereby referenced and made a part of this Agreement:

1. Section 1775 - Penalty for Failure to Comply with Prevailing Wage Rates.
2. Section 1777.4 - Apprenticeship Requirements.
3. Section 1777.5 - Apprenticeship Requirements.
4. Section 1813 - Penalty for Failure to Pay Overtime.
5. Sections 1810 and 1811 - Working Hour Restrictions.
6. Section 1776 - Payroll Records.
7. Section 1773.8 - Travel and Subsistence Pay.

13.11 Covenant Against Discrimination. Contractor covenants that, by and for itself, its heirs, executors, assigns and all persons claiming under or through them, that there shall be no discrimination against or segregation of, any person or group of persons on account of race, color, creed, religion, sex, marital status, national origin, or ancestry in the performance of this Agreement. Contractor shall take affirmative action to ensure that employees are treated during employment without regard to their race, color, creed, religion, sex, marital status, national origin or ancestry.

13.12 Waiver. Waiver by any party to this Agreement of any term, condition, or covenant of this Agreement shall not constitute a waiver of any other term, condition, or covenant. Waiver by any party of any breach of the provisions of this Agreement shall not constitute a waiver of any other provision or a waiver of any subsequent breach or violation of any provision of this Agreement. Acceptance by City of any work or Services by Contractor shall not constitute a waiver of any of the provisions of this Agreement. No delay or omission in the exercise of any right or remedy by a non-defaulting party on any default shall impair such right or remedy or be construed as a waiver. Any waiver by either party of any default must be in writing and shall not be a waiver of any other default concerning the same or any other provision of this Agreement.

13.13 Rights and Remedies are Cumulative. Except with respect to rights and remedies expressly declared to be exclusive in this Agreement, the rights and remedies of the parties are cumulative and the exercise by either party of one or more of such rights or remedies shall not preclude the exercise by it, at the same or different times, of any other rights or remedies for the same default or any other default by the other party.

13.14 Legal Action. In addition to any other rights or remedies, either party may take legal action, in law or in equity, to cure, correct or remedy any default, to recover damages for any default, to compel specific performance of this Agreement, to obtain declaratory or injunctive relief, or to obtain any other remedy consistent with the purpose of this Agreement.

13.15 Interpretation. The terms of this Agreement shall be construed in accordance with the meaning of the language used and shall not be construed for or against either party by reason of the authorship of this Agreement or any other rule of construction which might otherwise apply.

13.16 Both parties agree to use reasonable care and diligence to perform their respective obligations under this Agreement. Both parties agree to act in good faith to execute all instruments, prepare all documents and take all actions as may be reasonably necessary to carry out the purposes of this Agreement. Unless hereafter specified neither party shall be responsible for the service of the other.

13.17 The recitals set forth in the preamble of this Agreement are hereby incorporated into and made a substantive part of this Agreement as if fully set forth herein.

13.18 Electronic Signatures. Each Party may adopt as its signature an electronic identification consisting of a symbol or code that is affixed to or contained in each document transmitted by such Party ("electronic signature"). The Parties hereto hereby agree that electronic signatures are acceptable, shall have the same force and effect under the law as original wet signatures, and shall be sufficient to verify that the Parties have executed this Agreement and such other documents transmitted by the Parties

[SIGNATURES ON FOLLOWING PAGE]

IN WITNESS WHEREOF, the parties hereby have made and executed this Agreement to be effective as of the day and year first above written.

CITY:

CITY OF BEAUMONT

By: _____

Print
Name: _____

Date: _____

ATTEST:

By: _____
Nicole Wheelwright, Deputy City Clerk

Date: _____

APPROVED AS TO FORM:

By: _____
John O. Pinkney, City Attorney

Date: _____

CONTRACTOR:

COMMUNITY WORKS DESIGN GROUP,
LLC dba RHA COMMUNITY WORKS

By: _____
Digitally signed by Doug Grove, Managing Partner
DN: C=US, E=doug@rhaow.com, O=RHA Community Works, CN=Doug Grove, Managing Partner
Reason: I am the author of this document
Date: 2025.08.11 16:50:18-0700

Print
Name: Doug Grove

Date: August 11, 2026

EXHIBIT "A" PROPOSAL

Comprehensive CRC Feasibility Study and Business Plan



CHAPTER ONE - INTRODUCTION

OUR TEAM

RHA Community Works will serve as Prime Consultant and Project Manager. Doug Grove, Managing Partner, will be the main point of contact for the proposal and project. He can be reached at doug@rhacw.com or 951-202-2163. The address of the firm is 6840 Indiana Avenue, Suite 100, Riverside, California, 92506.

Primary responsibilities include:

- Project management and coordination
- Site Analysis
- Community engagement and facilitation
- Stakeholder outreach
- Needs assessment refinement
- Capital cost estimating
- Implementation planning
- Report preparation
- Commission and Council presentations



As the firm that helped prepare the Beaumont Parks & Community Services Master Plan, RHA will ensure continuity between the City's adopted vision and future implementation strategies.

Next Practice Partners

- Market analysis
- Demographic analysis
- Recreation planning
- Recreation demand forecasting
- Financial feasibility analysis
- Revenue and operating models
- Public-private partnership evaluation
- Funding strategy development
- Business plan preparation
- Commission and Council presentations



PBK Architects

- Facility programming
- Space needs assessments
- Site analysis
- Conceptual facility planning
- Development scenarios
- Capital cost estimating
- Facility implementation recommendations
- Commission and Council presentations



Comprehensive CRC Feasibility Study and Business Plan



OUR APPROACH

Because of our direct involvement in developing the Parks & Community Services, our team enters this project with:

- Extensive knowledge of Beaumont's recreation system and community priorities.
- Familiarity with demographic trends, growth projections, and recreation participation patterns.
- Understanding of previously identified facility needs and implementation priorities.
- Existing knowledge of stakeholder interests and community expectations.
- The ability to build directly upon prior public engagement efforts rather than repeating completed work.

Rather than revisiting previous planning efforts, our team will focus on answering the implementation questions that remain:

- What type of community recreation facility best serves Beaumont's future needs?
- What programs and amenities should be prioritized?
- What facility configuration provides the greatest community benefit and operational sustainability?
- What are the capital investment requirements?
- What operating revenues and expenses can be expected?
- What partnership and funding opportunities should be pursued?
- What implementation and phasing strategy should the City follow?

Our approach leverages the foundation established through the Parks & Community Services while providing the detailed financial, operational, and facility analysis necessary for future decision making.

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CHAPTER TWO – APPROACH

HOW WE WILL DELIVER

2.1.1 PROJECT INITIATION AND WORK PROGRAM

The project will begin with a kickoff meeting with City staff to establish project objectives, communication protocols, schedules, and decision-making processes. We see this project as a collaborative partnership and envision the City staff to be involved throughout via a project manager and select group of staff, as mutually agreed.

This may be in the form of a small project leadership team and complemented by an internal steering committee that will attend ongoing meetings, provide review and feedback, address data requests, and provide spaces, as needed for onsite meetings and community engagements.

Activities include:

- Kickoff meeting
- Review of Parks & Community Services findings
- Review of demographic and market data
- Development of project management framework
- Finalization of schedule and deliverables



Deliverable:

- Project Work Plan and Schedule

2.1.2 COMMUNITY AND MARKET ANALYSIS

Building upon information developed during the Parks & Community Services process, the team will update demographic, market, and recreation demand analyses to reflect current conditions.

We will update the City of Beaumont's projections and supplement using US Census information and census tract data from Environmental Systems Research Institute, Inc. (ESRI), the largest research and development organization dedicated to Geographical Information Systems (GIS) and specializing in population projections and market trends. This will help identify the demographic makeup of the population being served, their recreation preferences, future changes in the demographics and participation trends. Ultimately, these are foundational data sets to help the city plan for a future based on population shifts, and what recreation trends are occurring.

The analysis uses US 2020 Census information, 2026 (estimates) and future projections for characteristics including age, income, race / ethnicity, gender, health metrics etc. The ESRI Information will be supplemented by Sports & Fitness Industry Association's (SFIA) 2026 Study of Sports, Fitness and Leisure Participation, ESRI local market potential in addition to input from the Beaumont Parks & Community Services data.

Activities include:

- Demographic analysis
- Population growth forecasting

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- Recreation participation trends
- Socioeconomic analysis
- Recreation market assessment
- Benchmarking of comparable recreation centers
- Competitive facility analysis
- Gap analysis and unmet needs assessment

Deliverables:

- Community Profile
- Market Analysis Summary
- Recreation Trends Report

2.1.3 STAKEHOLDER AND PUBLIC ENGAGEMENT

As the City embarks on its journey to explore the feasibility of a multi-generational community recreation center, it is imperative to develop a robust outreach and engagement strategy. Our vision extends beyond the mere construction of a facility; we aspire to create a vibrant hub that fosters connectivity, wellness, and inclusivity among residents of all ages and backgrounds. Through strategic outreach initiatives, we aim to engage with the diverse voices and perspectives within our community, ensuring that their needs and aspirations are at the forefront of this endeavor.

By fostering collaboration and dialogue, we seek to co-create a space that not only meets the present needs of Beaumont's residents but also ensure long term financial viability. We will work with staff to develop an initial public engagement and outreach plan and will collaborate to build on the #BMTParks branding that was created for the Master Plan.

Communications and Engagement Plan

The Consulting team will work with City staff to develop a plan to communications and engagement plan for website content, social media posts, and the delivery of project specific materials. City staff will be responsible for eventual dissemination of this information to the community.



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Public Workshops

These meetings will be held in spaces to maximize community participation, will use live polling, open ended community feedback to seek input on recreation amenities, types of uses, frequency of use and willingness to pay. We propose to conduct at least five (5) public workshops:

- Two (2) initial in-person workshop (Citywide)
- Two (2) Event specific workshops (booths staffed with Beaumont staff)
- One (1) virtual workshop
- Two (2) workshops to review and obtain feedback on concepts and feasibility

These will obtain initial feedback and ideas for the future design and components of the Center. One (1) in-person follow up workshops to share Feasibility Findings / Design Ideas, as appropriate: Each workshop will have options for live polling through the meeting platform or our digital tools to share input and see results in real time.

Key Leadership/Focus Group/Stakeholder Interviews

The Consulting Team will engage stakeholders, key leaders, staff and potential user groups interviews through a combination of individual / small group discussions in person and online. We propose to conduct at least 12 interviews over a 1-day period to help identify priorities and unmet needs / potential amenities for use at the community recreation center. These groups can include but are not limited to

- Elected Officials
- Staff
- Key Partners
- Local school officials
- Faith based groups
- Users and non-users of the system
- Senior Groups
- Youth Groups
- Youth Sports organizations etc.



Youth / Teen Conversations

The Consulting Team will specifically engage youth through an online survey and meetings with other Youth / Teen Advisory groups.

These surveys and meetings will ensure the youth users in Beaumont share their input for the potential components and uses of the recreation center.

The Consulting Team will also incorporate QR Code-based surveys focused on youth / schools at special events.



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Additionally, the Consulting Team will seek innovative ways to maximize community engagement and reach the community where they are. These could include:

- Facebook Live with the Mayor or key leaders
- Spanish Speaking Population Outreach
- AI based tools to engage the community in collaborative input and visioning

The engagement program will include:

- Stakeholder interviews
- Focus groups
- Public workshops
- Online community surveys
- Virtual participation opportunities
- Parks and Recreation Commission presentations
- City Council presentations



The process will satisfy and exceed the City's anticipated engagement requirements while leveraging relationships and community knowledge established during the Parks & Community Services process.

Deliverables:

- Communication and Engagement Plan
- Survey Findings Report
- Stakeholder and Community Outreach Summary Memorandum

2.1.4 PROGRAM AND AMENITY IDENTIFICATION

The Consulting team will identify recreation programs and facility amenities that support a broad range of users and maximize long-term community benefit. The Consulting Team will analyze all major direct and indirect service providers of existing facilities and programs offered around Beaumont. Direct and indirect service providers will be based on typical services/programs administered in similar facilities. An analysis of competition will include location, service offering, pricing, and attraction and will help us better understand gaps in the market that the proposed center may be able to meet.

Potential program areas include:

- Fitness and wellness
- Youth recreation
- Teen programming
- Adult recreation
- Senior services
- Indoor sports
- Community gathering spaces
- Event facilities

Deliverable:

- Program and Amenity Matrix

PROGRAM & AMENITY MATRIX

A matrix showing how key programs are supported by amenities and spaces within the facility.

PROGRAMS	AMENITIES / SPACES											
	INDOOR COURT	OUTDOOR COURT	BEACH VILLAGE	RECREATION BUILDING	ADULT FITNESS BUILDING	TEEN FITNESS BUILDING	YOUTH COURT	SENIOR LIVING	COMMUNITY ROOM	ARTS & CRAFTS ROOM	OUTDOOR TERRACE	OUTDOOR COURT
ADULT WELLNESS												
YOUTH RECREATION												
TEEN PROGRAMMING												
ADULT RECREATION												
SENIOR SERVICES												
INDOOR SPORTS												
COMMUNITY GATHERING SPACES												
EVENT FACILITIES												

KEY: PRIMARY AMENITY (indicated by a solid black dot) - Amenities that are essential for the program. SUPPORTING AMENITY (indicated by a solid green dot) - Amenities that support the program. POTENTIAL / FUTURE USE (indicated by a hollow green dot) - Amenities that may be used in the future.

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2.1.5 FACILITY AND SITE ANALYSIS

The Consulting Team will translate community needs and program requirements into facility and site recommendations.

Activities include:

- Space needs assessment
- Facility programming
- Site evaluation criteria
- Evaluation of City-identified sites
- Identification of additional opportunities
- Joint-use evaluations
- Partnership site opportunities
- Phasing opportunities

Deliverables:

- Space Needs Assessment
- Site Evaluation Report
- Facility Program Summary



2.1.6 CONCEPTUAL FACILITY FRAMEWORK

The Consulting Team will translate the community input, competitor analysis, program trends and facility assessment into a concept plan that will document the variety of possibilities to create core program offerings for the Center. This core program will drive the design of the recreation center.

Based on site identification and analysis, the Consulting Team will develop a concept plan to showcase the various active and passive recreation elements within the footprint of the proposed site. All requirements necessary for safety and value of experience and any other special space needs as stipulated by key management and staff will be presented to the staff and community for feedback.

This information will be presented in a Visioning Session with the appropriate partners to finalize a recommended program plan from which the concept, spatial analysis, and operational and finance pro forma will be created.

Each scenario will include:

- Facility descriptions
- Functional layouts
- Space allocations
- Indoor and outdoor relationships
- Operational considerations
- Advantages and tradeoffs

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Deliverables:

- Concept Scenarios
- Facility Diagrams
- Comparative Evaluation Matrix

2.1.7 CAPITAL COST AND OPERATIONS ANALYSIS

The team will prepare planning-level capital and operating analyses for each concept.

Revenue Forecasting

The Consulting Team will develop a 5-year pro-forma and conduct market research to estimate potential demand for various amenities and services offered by the multi-generational recreation center. The model will project revenue streams including:

- Membership fees: Analyze pricing models and membership tiers to forecast membership uptake and renewal rates.
- Program fees: Estimate revenue generated from fitness classes, sports leagues, educational workshops, and other recreational activities.
- Facility rentals: Project income from renting out event spaces, sports fields, courts, and meeting rooms to external groups and organizations.
- Sponsorships and partnerships: Identify opportunities for securing sponsorship deals, advertising placements, and collaborative ventures with local businesses and corporations.
- Ancillary revenue: Explore additional revenue sources such as concession sales, vending machines, merchandise, and special events.

Operating Expenses

The pro-forma will estimate fixed and variable costs associated with operating the recreation center, including:

- Personnel expenses: Salaries, wages, benefits, training, and staffing levels for administrative, managerial, programmatic, and maintenance staff.
- Facility expenses: Utilities, maintenance, repairs, cleaning services, security, insurance, property taxes, and depreciation.
- Programming expenses: Costs related to program development, instructors, equipment, supplies, and marketing materials.
- Administrative expenses: Office supplies, technology infrastructure, software licenses, professional services (e.g., accounting, legal), and miscellaneous overhead.
- Marketing and promotion: Budget for advertising campaigns, digital marketing initiatives, promotional materials, and community outreach efforts.
- Contingency and reserves: Allocate funds for unforeseen expenses, emergencies, and reserves for future capital improvements.

Capital Investment Requirements

It will also identify upfront capital expenditures required for facility construction, renovation, equipment procurement, and initial setup. Estimate high costs for land acquisition (if required), site preparation, interior and exterior building construction etc.

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Reporting and Documentation

The model will document assumptions, methodologies, and key drivers underlying the financial projections to facilitate transparency, accountability, and stakeholder communication. This will help provide a clear understanding of the revenue potential, cost structure, funding requirements, and financial sustainability of the multi-generational recreation center in the City of Beaumont.

Feasibility Analysis

Based on the community input, market conditions and financial model, the Consulting Team will collaborate with staff to provide a feasibility assessment of the proposed Community Recreation Center. This will identify potential options for site, partnerships, programming, design and financial information that will help guide the future business planning process and the sustainability of the proposed site.

Activities include:

- Capital cost estimating
- Staffing analysis
- Revenue forecasting
- Membership projections
- Operating expense projections
- Cost recovery analysis
- Long-term sustainability assessment

Deliverables:

- Capital Cost Analysis
- Five-Year Operating Pro-Forma
- Financial Sustainability Assessment

2.1.8 PARTNERSHIP AND FUNDING STRATEGY

The team will proactively explore opportunities to improve project feasibility by identifying and pursuing strategic partnerships with public, private, nonprofit, and community-based organizations. In addition, the team will evaluate alternative funding mechanisms, including grants, sponsorships, cost-sharing arrangements, philanthropic contributions, and other innovative financing options. These efforts will help reduce financial barriers, leverage external resources and expertise, strengthen stakeholder support, and increase the likelihood of successful project implementation and long-term sustainability.

Activities include:

- Public-private partnership evaluation
- Joint-use opportunities
- School district partnerships
- Nonprofit partnerships
- Sponsorship opportunities
- Grant funding identification
- Alternative financing strategies

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Deliverable:

- Partnership and Funding Strategy Report

2.1.9 IMPLEMENTATION AND PHASING STRATEGY

The project will culminate in the development of a recommended implementation strategy that outlines the preferred path forward based on the findings of the analysis, stakeholder input, technical considerations, and financial feasibility assessments. The strategy will identify key actions, resource requirements, potential partnerships, funding opportunities, implementation timelines, and risk mitigation measures to support informed decision-making and successful project execution.

Activities include:

- Preferred concept selection
- Development phasing recommendations
- Risk assessment
- Funding roadmap
- Implementation schedule
- Key decision points

Deliverable:

- Implementation and Phasing Plan

2.1.10 FINAL REPORTING AND PRESENTATIONS

The final phase will include preparation of a comprehensive feasibility study and business plan suitable for public review and future decision-making. The Consulting Team will present the summary recommendations and findings from the process to identify a new facility that can meet the future demands of the Beaumont community. This will be a combination of in-person and virtual options to get community feedback and iterate as required as well as obtain input from key City leadership.

Deliverables:

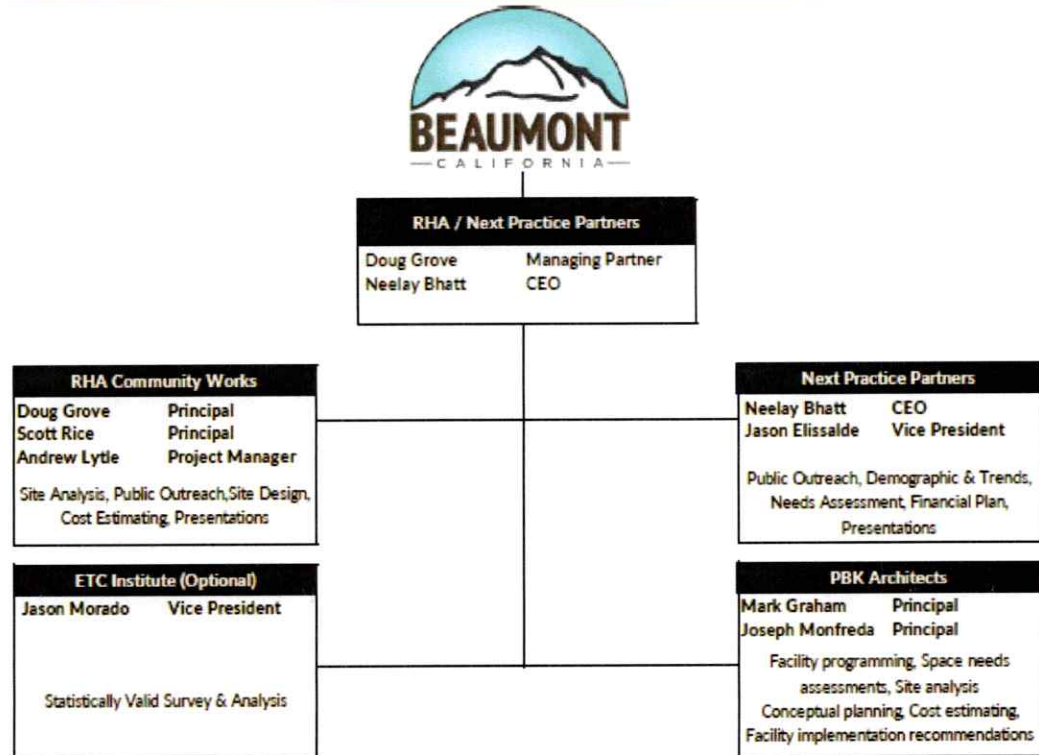
- Administrative Draft Report
- Draft Feasibility Study and Business Plan
- Final Feasibility Study and Business Plan
- Executive Summary
- Presentation materials
- Parks and Recreation Commission presentation
- City Council presentation



Comprehensive CRC Feasibility Study and Business Plan



PROJECT ORGANIZATIONAL CHART



Comprehensive CRC Feasibility Study and Business Plan



CHAPTER FIVE – PROJECT SCHEDULE

This time frame is estimated based on our experience preparing similar studies for other agencies. We will adjust as needed to best fit Beaumont's goals and schedule.

	Month 1				Month 2				Month 3				Month 4				Month 5				Month 6				Month 7				Month 8				Month 9				Month 10				Month 11				Month 12			
Week:	1	2	3	4	1	2	3	4	1	2	3	4	1	2	3	4	1	2	3	4	1	2	3	4	1	2	3	4	1	2	3	4	1	2	3	4	1	2	3	4	1	2	3	4	1	2	3	4
2.1.1 PROJECT INITIATION AND WORK PROGRAM																																																
2.1.2 COMMUNITY AND MARKET ANALYSIS																																																
2.1.3 STAKEHOLDER AND PUBLIC ENGAGEMENT																																																
2.1.4 PROGRAM AND AMENITY IDENTIFICATION																																																
2.1.5 FACILITY AND SITE ANALYSIS																																																
2.1.6 CONCEPTUAL FACILITY FRAMEWORK																																																
2.1.7 CAPITAL COST AND OPERATIONS ANALYSIS																																																
2.1.8 PARTNERSHIP AND FUNDING STRATEGY																																																
2.1.9 IMPLEMENTATION AND PHASING STRATEGY																																																
2.1.10 FINAL REPORTING AND PRESENTATIONS																																																

CHAPTER SIX – COST PROPOSAL

City of Beaumont

Comprehensive Community Recreation Center Feasibility Study and Business Plan RHA Community Works - Next Practice Partners - PBK Architects

Fee Proposal

08-Jun-26

TASK	RHA Community Works			Next Practice Partners				PBK Architects			TOTAL
	\$200	\$175	\$135	\$200	\$175	\$150	\$100	\$310	\$275	\$180	
2.1.1 PROJECT INITIATION AND WORK PROGRAM											
Kick-off Meeting	3			8				1	1		\$ 2,785
Review Existing Documentation	2	3		4			4	1	2		\$ 2,985
Schedule and Project Management Framework	3										\$ 600
Project Management and Progress Reporting	10					16	16				\$ 6,400
Subtotal Hours	18	3	-	12	16	-	20	2	3	-	74
Subtotal Dollars	\$ 3,600	\$ 525	\$ -	\$ 2,400	\$ 2,800	\$ -	\$ 2,000	\$ 620	\$ 825	\$ -	
TOTAL	\$4,125			\$7,200				\$1,445			\$ 12,770
2.1.2 COMMUNITY AND MARKET ANALYSIS											
Demographics and Trends Analysis	1				8		32				\$ 4,800
Recreation Market Assessment	1			4		32	32				\$ 9,000
Benchmark Analysis	1			4			40				\$ 5,000
Competitive Facility Analysis	1					24	24				\$ 6,200
Gap Analysis and Unmet Needs Assessment	1				16	16					\$ 5,400
Subtotal Hours	5	-	-	8	24	72	128	-	-	-	237
Subtotal Dollars	\$ 1,000	\$ -	\$ -	\$ 1,600	\$ 4,200	\$10,800	\$12,800	\$ -	\$ -	\$ -	
TOTAL	\$1,000			\$29,400				\$0			\$ 30,400
2.1.3 STAKEHOLDER AND PUBLIC ENGAGEMENT											
Communications and Engagement Plan	4			4		4					\$ 2,200
Key Leadership / Focus Group / Stakeholder Interviews	16			24							\$ 8,000
Multi-Lingual Outreach				4							\$ 800
Public Workshops (5)	20			8	12			1	1		\$ 8,285
Event Specific Workshops (2)		6				8		1	2		\$ 3,110
Youth / Teen Conversations		6					8				\$ 1,850
Bi-Lingual Electronic Survey						24	24				\$ 6,000
Multi-lingual Statistically-Valid Survey (optional - see fee at bottom)											see below
Multi-lingual ADA Accessible Digital Platform (use existing)						8	32				\$ 4,400
Subtotal Hours	40	12	-	40	12	44	64	2	3	-	217
Subtotal Dollars	\$ 8,000	\$ 2,100	\$ -	\$ 8,000	\$ 2,100	\$ 6,600	\$ 6,400	\$ 620	\$ 825	\$ -	
TOTAL	\$10,100			\$23,100				\$1,445			\$ 34,645

City of Beaumont

Comprehensive Community Recreation Center Feasibility Study and Business Plan
RHA Community Works - Next Practice Partners - PBK Architects

Fee Proposal

08-Jun-26

TASK	RHA Community Works			Next Practice Partners				PBK Architects			TOTAL
	\$200	\$175	\$135	\$200	\$175	\$150	\$100	\$310	\$275	\$180	
2.1.4 PROGRAM AND AMENITY IDENTIFICATION											
Program Identification				8	16			4	5		\$ 7,015
Facility Amenity Identification				8	12			4	5		\$ 6,315
Program and Amenity Matrix					8						\$ 1,400
Subtotal Hours	-	-	-	16	36	-	-	8	10	-	70
Subtotal Dollars	\$ -	\$ -	\$ -	\$ 3,200	\$ 6,300	\$ -	\$ -	\$ 2,480	\$ 2,750	\$ -	
TOTAL	\$0			\$9,500				\$5,230			\$ 14,730
2.1.5 FACILITY AND SITE ANALYSIS											
Space Needs Assessment								4	3	3	\$ 2,605
Site Evaluation Report	2	8	8					1	3	2	\$ 4,375
Facility Program Summary								4	3	3	\$ 2,605
Subtotal Hours	2	8	8	-	-	-	-	9	9	8	44
Subtotal Dollars	\$ 400	\$ 1,400	\$ 1,080	\$ -	\$ -	\$ -	\$ -	\$ 2,790	\$ 2,475	\$ 1,440	
TOTAL	\$2,880			\$0				\$6,705			\$ 9,585
2.1.6 CONCEPTUAL FACILITY FRAMEWORK											
Concept Scenarios	2	12	16	8				2	5	4	\$ 8,975
Facility Diagrams								2	2	4	\$ 1,890
Comparative Evaluation Matrix	4	8						2	2		\$ 3,370
Subtotal Hours	6	20	16	8	-	-	-	6	9	8	73
Subtotal Dollars	\$ 1,200	\$ 3,500	\$ 2,160	\$ 1,600	\$ -	\$ -	\$ -	\$ 1,860	\$ 2,475	\$ 1,440	
TOTAL	\$6,860			\$1,600				\$5,775			\$ 14,235
2.1.7 CAPITAL COST AND OPERATIONS ANALYSIS											
Capital Cost Analysis	2	12	6					2	5	2	\$ 5,665
Five-Year Operating Pro-Forma					24	24	24				\$ 10,200
Financial Sustainability Assessment				12	12	24	8				\$ 8,900
Subtotal Hours	2	12	6	12	36	48	32	2	5	2	157
Subtotal Dollars	\$ 400	\$ 2,100	\$ 810	\$ 2,400	\$ 6,300	\$ 7,200	\$ 3,200	\$ 620	\$ 1,375	\$ 360	
TOTAL	\$3,310			\$19,100				\$2,355			\$ 24,765

City of Beaumont

Comprehensive Community Recreation Center Feasibility Study and Business Plan
RHA Community Works - Next Practice Partners - PBK Architects

Fee Proposal

08-Jun-26

TASK	RHA Community Works			Next Practice Partners				PBK Architects			TOTAL
	\$200	\$175	\$135	\$200	\$175	\$190	\$100	\$310	\$275	\$180	
2.1.8 PARTNERSHIP AND FUNDING STRATEGY											
Potential partnership investigation and evaluation				4	24						\$ 5,000
Partnership and Funding Strategy Report				4	16						\$ 5,600
Subtotal Hours	-	-	-	8	40	-	-	-	-	-	48
Subtotal Dollars	\$ -	\$ -	\$ -	\$ 1,600	\$ 7,000	\$ -	\$ -	\$ -	\$ -	\$ -	
TOTAL	\$0			\$8,600				\$0			\$ 8,600
2.1.9 IMPLEMENTATION AND PHASING STRATEGY											
Implementation and Phasing Plan	4			16	16			2	2	2	\$ 8,330
Subtotal Hours	4	-	-	16	16	-	-	2	2	2	42
Subtotal Dollars	\$ 800	\$ -	\$ -	\$ 3,200	\$ 2,800	\$ -	\$ -	\$ 620	\$ 550	\$ 360	
TOTAL	\$800			\$6,000				\$1,530			\$ 8,330
2.1.10 FINAL REPORTING AND PRESENTATIONS											
Administrative Draft Report	6				8			3	4	2	\$ 4,990
Draft Feasibility Study and Business Plan				4	16		8				\$ 4,400
Final Feasibility Study and Business Plan							8				\$ 800
Executive Summary	3										\$ 600
Parks and Recreation Commission presentation	3			8	8			2	1		\$ 4,495
City Council presentation	3			8	8						\$ 3,600
Subtotal Hours	15	-	-	20	40	-	16	5	5	2	103
Subtotal Dollars	\$ 3,000	\$ -	\$ -	\$ 4,000	\$ 7,000	\$ -	\$ 1,600	\$ 1,550	\$ 1,375	\$ 360	
TOTAL	\$3,000			\$12,600				\$3,285			\$ 18,885
TOTAL HOURS	92	55	30	140	220	164	260	36	46	22	1,065
TOTAL FEES	\$18,400	\$ 9,625	\$ 4,050	\$28,000	\$38,500	\$24,600	\$26,000	\$11,160	\$12,650	\$ 3,960	
TOTAL DOLLARS	\$32,075			\$117,100				\$27,770			\$ 176,945
OPTIONAL TASK - Statistically-Valid Survey											
Multi-lingual Statistically-Valid Survey							170				\$ 17,000
Subtotal Hours	-	-	-	-	-	-	170	-	-	-	170
Subtotal Dollars	\$ -	\$ -	\$ -	\$ -	\$ -	\$ -	\$17,000	\$ -	\$ -	\$ -	\$ 17,000



CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY)

7/14/2026

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an ADDITIONAL INSURED, the policy(ies) must have ADDITIONAL INSURED provisions or be endorsed. If SUBROGATION IS WAIVED, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER Risk Strategies Company 2040 Main Street, Suite 450 Irvine, CA 92614 www.risk-strategies.com	CA DOI License No. 0F06675	CONTACT NAME: Risk Strategies Company PHONE (A/C, No, Ext): (747) 221-7683 x7683 FAX (A/C, No): E-MAIL ADDRESS: syoung@risk-strategies.com INSURER(S) AFFORDING COVERAGE <table><tr><td>INSURER A: RLI Insurance Company</td><td>NAIC# 13056</td></tr><tr><td>INSURER B: Hartford Casualty Insurance Company</td><td>29424</td></tr><tr><td>INSURER C: Travelers Casualty and Surety Co of America</td><td>31194</td></tr><tr><td>INSURER D:</td><td></td></tr><tr><td>INSURER E:</td><td></td></tr><tr><td>INSURER F:</td><td></td></tr></table>	INSURER A: RLI Insurance Company	NAIC# 13056	INSURER B: Hartford Casualty Insurance Company	29424	INSURER C: Travelers Casualty and Surety Co of America	31194	INSURER D:		INSURER E:		INSURER F:	
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INSURER D:														
INSURER E:														
INSURER F:														
INSURED Community Works Design Group, LLC dba RHA Community Works 7111 Indiana Ave., Ste 300 Riverside CA 92504														

COVERAGES**CERTIFICATE NUMBER:** 91458189**REVISION NUMBER:**

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADDITIONAL INSURED	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS
A	☒ COMMERCIAL GENERAL LIABILITY ☐ CLAIMS-MADE ☒ OCCUR GEN'L AGGREGATE LIMIT APPLIES PER: ☐ POLICY ☒ PROJECT ☐ LOC ☐ OTHER: A	☒	PSB0012191	5/15/2026	5/15/2027	EACH OCCURRENCE \$2,000,000 DAMAGE TO RENTED PREMISES (Ea occurrence) \$1,000,000 MED EXP (Any one person) \$10,000 PERSONAL & ADV INJURY \$2,000,000 GENERAL AGGREGATE \$4,000,000 PRODUCTS - COMPIOP AGG \$4,000,000 \$
A	AUTOMOBILE LIABILITY ☐ ANY AUTO ☐ OWNED AUTOS ONLY ☒ HIRED AUTOS ONLY ☐ SCHEDULED AUTOS ☒ NON-OWNED AUTOS ONLY	☒	PSA00004515	5/15/2026	5/15/2027	COMBINED SINGLE LIMIT (Ea accident) \$1,000,000 BODILY INJURY (Per person) \$ BODILY INJURY (Per accident) \$ PROPERTY DAMAGE (Per accident) \$ \$
A	☒ UMBRELLA LIAB ☒ OCCUR ☐ EXCESS LIAB ☐ CLAIMS-MADE ☐ DED ☒ RETENTION \$0		PSE0006106	5/15/2026	5/15/2027	EACH OCCURRENCE \$1,000,000 AGGREGATE \$1,000,000 \$
B	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? (Mandatory in NH) If yes, describe under DESCRIPTION OF OPERATIONS below	☒ Y/N ☐ N/A	72WEGCBBHW4	5/15/2026	5/15/2027	☒ PER-STATUTE ☐ OTH-ER E.L. EACH ACCIDENT \$1,000,000 E.L. DISEASE - EA EMPLOYEE \$1,000,000 E.L. DISEASE - POLICY LIMIT \$1,000,000
C	Professional Liability		108498095	5/15/2026	5/15/2027	Per Claim: \$2,000,000 Aggregate: \$4,000,000

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)

Projects as on file with the insured
The City of Beaumont, its officers, officials, employees, and agents are named as additional insured on the general and auto liability policies and a waiver of subrogation in favor of the additional insureds applies to the work comp policy-see attached endorsements

CERTIFICATE HOLDER

City of Beaumont
550 E. 6th Street
Beaumont CA 92223

CANCELLATION

SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS.

AUTHORIZED REPRESENTATIVE

RSC Insurance Brokerage

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ACORD 25 (2016/03)

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THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**RLIPack® FOR PROFESSIONALS
BLANKET ADDITIONAL INSURED ENDORSEMENT**

This endorsement modifies insurance provided under the following:

BUSINESSOWNERS COVERAGE FORM - SECTION II – LIABILITY

1. **C. WHO IS AN INSURED** is amended to include as an additional insured any person or organization that you agree in a contract or agreement requiring insurance to include as an additional insured on this policy, but only with respect to liability for "bodily injury", "property damage" or "personal and advertising injury" caused in whole or in part by you or those acting on your behalf:

- In the performance of your ongoing operations;
- In connection with premises owned by or rented to you; or
- In connection with "your work" and included within the "product-completed operations hazard".

2. The insurance provided to the additional insured by this endorsement is limited as follows:

- This insurance does not apply on any basis to any person or organization for which coverage as an additional insured specifically is added by another endorsement to this policy.
- This insurance does not apply to the rendering of or failure to render any "professional services".
- This endorsement does not increase any of the limits of insurance stated in D. Liability And Medical Expenses Limits of Insurance.

3. The following is added to **SECTION III H.2. Other Insurance – COMMON POLICY CONDITIONS (BUT APPLICABLE ONLY TO SECTION II – LIABILITY)**

However, if you specifically agree in a contract or agreement that the insurance provided to an

additional insured under this policy must apply on a primary basis, or a primary and non-contributory basis, this insurance is primary to other insurance that is available to such additional insured which covers such additional insured as a named insured, and we will not share with that other insurance, provided that:

- The "bodily injury" or "property damage" for which coverage is sought occurs after you have entered into that contract or agreement; or
- The "personal and advertising injury" for which coverage is sought arises out of an offense committed after you have entered into that contract or agreement.

4. The following is added to **SECTION III K. 2. Transfer of Rights of Recovery Against Others to Us – COMMON POLICY CONDITIONS (BUT APPLICABLE TO ONLY TO SECTION II – LIABILITY)**

We waive any rights of recovery we may have against any person or organization because of payments we make for "bodily injury", "property damage" or "personal and advertising injury" arising out of "your work" performed by you, or on your behalf, under a contract or agreement with that person or organization. We waive these rights only where you have agreed to do so as part of a contract or agreement with such person or organization entered into by you before the "bodily injury" or "property damage" occurs, or the "personal and advertising injury" offense is committed.

ALL OTHER TERMS AND CONDITIONS OF THIS POLICY REMAIN UNCHANGED.

Policy Number: PSA0004515
Named Insured: Community Works Design Group, LLC

RLI Insurance Company

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

RLIPack® BUSINESS AUTO ENHANCEMENT

SCHEDULE OF COVERAGES ADDRESSED BY THIS ENDORSEMENT

- A. Broad Form Named Insured**
- B. Employees As Insureds**
- C. Blanket Additional Insured**
- D. Blanket Waiver Of Subrogation**
- E. Employee Hired Autos**
- F. Fellow Employee Coverage**
- G. Auto Loan Lease Gap Coverage**
- H. Glass Repair – Waiver Of Deductible**
- I. Personal Effects Coverage**
- J. Hired Auto Physical Damage Coverage**
- K. Hired Auto Physical Damage – Loss Of Use**
- L. Hired Car – Worldwide Coverage**
- M. Temporary Transportation Expenses**
- N. Amended Bodily Injury Definition – Mental Anguish**
- O. Airbag Coverage**
- P. Amended Insured Contract Definition – Railroad Easement**
- Q. Coverage Extensions – Audio, Visual And Data Electronic Equipment Not Designed Solely For The Production Of Sound**
- R. Notice Of And Knowledge Of Occurrence**
- S. Unintentional Errors Or Omissions**
- T. Towing Coverage**

This endorsement modifies Insurance provided under the following:

BUSINESS AUTO COVERAGE FORM

A. Broad Form Named Insured

The following is added to the **SECTION II – COVERED AUTOS LIABILITY COVERAGE**, Paragraph A.1. Who Is An Insured Provision:

Any business entity newly acquired or formed by you during the policy period, provided you own fifty percent (50%) or more of the business entity and the business entity is not separately insured for Business Auto Coverage. Coverage is extended up to a maximum of one hundred eighty (180) days following the acquisition or formation of the business entity.

This provision does not apply to any person or organization for which coverage is excluded by endorsement.

B. Employees As Insureds

The following is added to the **SECTION II – COVERED AUTOS LIABILITY COVERAGE**, Paragraph A.1. Who Is An Insured Provision:

Any "employee" of yours is an "insured" while using a covered "auto" you don't own, hire or borrow in your business or your personal affairs.

C. Blanket Additional Insured

The following is added to the **SECTION II – COVERED AUTOS LIABILITY COVERAGE**, Paragraph A.1. Who Is An Insured Provision:

Any person or organization that you are required to include as an additional insured on this coverage form in a contract or agreement that is executed by you before the "bodily injury" or "property damage" occurs is an "insured" for liability coverage, but only for damages to which this insurance applies and only to the extent that person or organization qualifies as an "insured" under the Who Is An Insured provision contained in **SECTION II – COVERED AUTOS LIABILITY COVERAGE**.

The insurance provided to the additional insured will be on a primary and non-contributory basis to the additional insured's own business auto coverage if you are required to do so in a contract or agreement that is executed by you before the "bodily injury" or "property damage" occurs.

D. Blanket Waiver Of Subrogation

The following is added to the **SECTION IV – BUSINESS AUTO CONDITIONS**, A. Loss Conditions, 5. Transfer Of Rights Of Recovery Against Others To Us:

We waive any right of recovery we may have against any person or organization to the extent required of you by a contract executed prior to any "accident" or "loss", provided that the "accident" or "loss" arises out

of the operations contemplated by such contract. The waiver applies only to the person or organization designated in such contract.

E. Employee Hired Autos

1. The following is added to the **SECTION II – COVERED AUTOS LIABILITY COVERAGE**, Paragraph A.1. Who Is An Insured Provision:

An "employee" of yours is an "insured" while operating an "auto" hired or rented under a contract or agreement in that "employee's" name, with your permission, while performing duties related to the conduct of your business.

2. Changes In General Conditions:

Paragraph 5.b. of the Other Insurance Condition in the **BUSINESS AUTO CONDITIONS** is deleted and replaced with the following:

b. For Hired Auto Physical Damage Coverage, the following are deemed to be covered "autos" you own:

(1) Any covered "auto" you lease, hire, rent or borrow; and

(2) Any covered "auto" hired or rented by your "employee" under a contract in that individual "employee's" name, with your permission, while performing duties related to the conduct of your business. However, any "auto" that is leased, hired, rented or borrowed with a driver is not a covered "auto".

F. Fellow Employee Coverage

SECTION II – COVERED AUTOS LIABILITY COVERAGE, Exclusion B.5. does not apply if you have workers compensation insurance in-force covering all of your employees.

G. Auto Loan Lease Gap Coverage

SECTION III – PHYSICAL DAMAGE COVERAGE, C. Limit Of Insurance, is amended by the addition of the following:

In the event of a total "loss" to a covered "auto" shown in the Schedule of Declarations, we will pay any unpaid amount due on the lease or loan for a covered "auto", less:

1. The amount paid under the **PHYSICAL DAMAGE COVERAGE** section of the policy; and

2. Any:

a. Overdue lease/loan payments at the time of the "loss";

- b. Financial penalties imposed under a lease for excessive use, abnormal wear and tear or high mileage.
- c. Security deposits not returned by the lessor;
- d. Costs for extended warranties, Credit Life Insurance, Health, Accident or Disability Insurance purchased with the loan or lease; and
- e. Carry-over balances from previous loans or leases.

H. Glass Repair – Waiver Of Deductible

SECTION III – PHYSICAL DAMAGE COVERAGE,

D. Deductible is amended by adding the following:

No deductible for a covered "auto" will apply to glass damage if the glass is repaired rather than replaced.

I. Personal Effects Coverage

The following is added to **SECTION III – PHYSICAL DAMAGE COVERAGE, A. Coverage, 4. Coverage Extensions:**

c. Personal Effects Coverage

In the event of a total theft loss of your covered "auto" we will pay up to \$400 for "loss" to wearing apparel and other personal effects which are:

- (1) Owned by an "insured"; and
- (2) In or on your covered "auto";

No deductible applies to Personal Effects Coverage.

J. Hired Auto Physical Damage Coverage

The following is added to **SECTION III – PHYSICAL DAMAGE COVERAGE, A. Coverage, 4. Coverage Extensions:**

d. Hired Auto Physical Damage Coverage

If hired "autos" are covered "autos" for Liability Coverage and this policy also provides Physical Damage Coverage for an owned "auto", then the Physical Damage Coverage is extended to "autos" that you hire, rent or borrow subject to the following:

- (1) The most we will pay for "loss" in any one "accident" to a hired, rented or borrowed "auto" is the lesser of:
 - (a) \$60,000
 - (b) The actual cash value of the damaged or stolen property as of the time of the "loss"; or
 - (c) The cost of repairing or replacing the damaged or stolen property with other property of like kind and quality.

(2) An adjustment for depreciation and physical condition will be made in the event of a total "loss".

(3) If a repair or replacement results in better than like kind or quality, we will not pay for the betterment.

(4) A deductible equal to the highest Physical Damage deductible applicable to any owned auto will apply.

(5) This Coverage Extension will not apply to:

- (a) Any "auto" that is hired, rented or borrowed with a driver; or
- (b) Any "auto" that is hired, rented or borrowed from your "employee".

K. Hired Auto Physical Damage – Loss Of Use

The following is added to **SECTION III – PHYSICAL DAMAGE COVERAGE, A. Coverage, 4. Coverage Extensions:**

e. We will pay sums which you legally must pay to the lessor of a covered "auto" which you have leased without a driver for thirty (30) days or less for the lessor's loss of use of the covered "auto", provided:

- (1) This Insurance provides comprehensive, specified causes of loss or collision covered on the covered "auto";
- (2) The loss of use results from the covered "auto" being damaged in an "accident" while you are leasing it.

We will pay up to a maximum limit of \$1,500 for this covered extension.

L. Hired Car – Worldwide Coverage

The following is added to **SECTION II – COVERED AUTOS LIABILITY COVERAGE, A.2. Coverage Extensions:**

f. Hired Car – Worldwide Coverage

- (1) We will pay all sums an "insured" legally must pay as damages because of "bodily injury" or "property damage" to which this Insurance applies, caused by an "accident" which occurs outside of the United States of America, the territories and possessions of the United States of America, Puerto Rico and Canada resulting from the maintenance, or use of any covered "auto" of the private passenger type you lease, hire, rent or borrow without a driver for thirty (30) days or less.
- (2) With respect to any claim made or "suit" instituted outside the United States of America, the territories and possessions of the United States of America, Puerto Rico, and Canada:

- (a) You shall undertake the investigation, settlement and defense of such claims and "suits" and keep us advised of all proceedings and actions.
- (b) You will not make any settlement without our consent.
- (c) We will reimburse you:
 - (i) For the amount of damages because of liability imposed upon you by law on account of "bodily injury" or "property damage" to which this insurance applies, and
 - (ii) For all reasonable expenses incurred with our consent in connection with the investigation, settlement or defense of such claims or "suits". Reimbursement for expenses will be part of the Limit of Insurance for liability coverage shown in the Business Auto Coverage Declarations, and not in addition to such limits.
- (3) The limit of Insurance for Liability Coverage shown in the Business Auto Coverage Declarations is the most we will reimburse you for the sum of all damages imposed on you, as set forth in paragraph 2.c. above, and all expenses incurred by you arising out of any single "accident" or "loss".
- (4) You must maintain the greater of the following primary auto liability insurance limits:
 - (a) Compulsory admitted insurance with limits required to be in force to satisfy the legal requirements of the jurisdiction where the accident occurs; or
 - (b) Insurance limits required by law and issued by a government entity or by an insurer licensed or permitted by law to do business in the jurisdiction where the "accident" occurs; or
 - (c) Auto liability insurance limits of at least \$300,000 combined single limit or \$100,000 per person/\$300,000 per accident Bodily Injury, \$100,000 Property Damage.

If you fail to comply with the above, this insurance is not invalidated. However, in the event of a "loss", we will pay only to the extent that we would have been liable had you so complied.
- (5) The insurance provided by this coverage extension is excess over any other collectible insurance available to you whether on a primary, excess contingent or any other basis.

M. Temporary Transportation Expenses

SECTION III – PHYSICAL DAMAGE COVERAGE, A.4. Coverage Extensions, subparagraph a. Transportation Expenses is deleted and replaced by the following:

a. Transportation Expenses

- (1) We will pay up to a maximum of \$1,500 for temporary transportation expense incurred by you because of Physical Damage to a covered "auto".
- (2) We will pay only for those covered "autos" for which you carry Comprehensive, Collision or Specified Case of Loss Coverage.
- (3) We will pay only for those expenses incurred by you during the period of time that begins twenty-four (24) hours after the covered "loss" and ends at the time when the covered "auto" can be reasonably repaired or replaced.
- (4) This coverage does not apply while there are spare or reserve "autos" available to you for your operations.

N. Amended Bodily Injury Definition – Mental Anguish

The following is added to **SECTION V – DEFINITIONS, Definition C.:**

"Bodily Injury" also includes mental anguish, but only when the mental anguish arises from other bodily injury, sickness or disease.

O. Airbag Coverage

The following is added to **SECTION III – PHYSICAL DAMAGE COVERAGE B. Exclusions 3.a.:**

However, this exclusion will not apply to accidental discharge of an airbag due to mechanical or electrical breakdown.

P. Amended Insured Contract Definition – Railroad Easement

SECTION V – DEFINITIONS paragraph H. "Insured contact" is modified as follows:

- 1. Paragraph H.3. is replaced by the following:
 - 3. Any easement or license agreement.
- 2. Paragraph H.6.a. is deleted.

Q. Coverage Extensions – Audio, Visual And Data Electronic Equipment Not Designed Solely For The Production Of Sound

SECTION III – PHYSICAL DAMAGE COVERAGE B. Exclusions, exception paragraph a. to exclusion 4.c. and 4.d. is deleted and replaced with the following:

- a. Equipment and accessories used with such equipment, except for tapes, records, discs or other electronic media device, provided such equipment is permanently installed in the covered "auto" at the time of the "loss" or is removable from the housing unit which is permanently installed in the covered "auto" at the time of the "loss", and such equipment is designed to be solely operated by use of the power from the "autos" electrical system, in or upon the covered "autos"; or

R. Notice Of And Knowledge Of Occurrence

SECTION IV – BUSINESS AUTO CONDITIONS, A.2. Duties In The Event Of Accident, Claim Suit Or Loss, subparagraph a. is deleted and replaced with the following:

- a. In the event of "accident", claim, "suit" or "loss", you must give us or our authorized representative prompt notice of the "accident" or "loss" including:
- (1) How, when and where the "accident" or "loss" occurred;
 - (2) The "insured's" name and address; and
 - (3) To the extent possible, the names and addresses of any injured person and witnesses.

Your duty to give us or our authorized representative prompt notice of the "accident" or "loss" applies only when the "accident" or "loss" is known to:

- (1) You, if you are an individual;

- (2) A partner if you are a partnership; or
- (3) An executive officer or insurance manager, if you are a corporation.

S. Unintentional Errors Or Omissions

SECTION IV – BUSINESS AUTO CONDITIONS, B. General Conditions; 2. Concealment Misrepresentation Or Fraud is amended by adding the following:

The unintentional omission of, or unintentional error in, any information given by you shall not prejudice your rights under this insurance. However this provision does not affect our right to collect additional premium or exercise our right of cancellation or nonrenewal.

T. Towing Coverage

SECTION III – PHYSICAL DAMAGE COVERAGE, A.2. Towing, is deleted and replaced by the following:

2. We will pay up to \$750 for towing and labor costs incurred each time a covered "auto" is disabled due to a covered cause of loss. However:
 - a. All labor must be performed at the place of disablement; and
 - b. If the covered auto is a private passenger type no deductible applies; and
 - c. If the covered auto is not of the private passenger type our obligation to pay will be reduced by a \$250 deductible per disablement.

ALL OTHER TERMS AND CONDITIONS OF THIS POLICY REMAIN UNCHANGED.



THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**WAIVER OF OUR RIGHT TO RECOVER FROM
OTHERS ENDORSEMENT - CALIFORNIA**

Policy Number: 72 WEG CB8HW4

Endorsement Number:

Effective Date: 05/15/26

Effective hour is the same as stated on the Information Page of the policy.

Named Insured and Address: Community Works Design Group, LLC dba: RHA Community Works
7111 INDIANA AVE STE 300
RIVERSIDE CA 92504

We have the right to recover our payments from anyone liable for an injury covered by this policy. We will not enforce our right against the person or organization named in the Schedule. (This agreement applies only to the extent that you perform work under a written contract that requires you to obtain this agreement from us.)

You must maintain payroll records accurately segregating the remuneration of your employees while engaged in the work described in the Schedule.

The additional premium for this endorsement shall be 2 % of the California workers' compensation premium otherwise due on such remuneration.

SCHEDULE

Person or Organization

Job Description

Any person or organization for whom you are required by written contract or agreement to obtain this waiver of rights from us

Countersigned by

Authorized Representative

Form WC 04 03 06

(1) Printed in U.S.A.

Process Date: 05/15/26

Policy Expiration Date: 05/15/27